

When Courts Use History to Enforce Power

Judicial Substitution, Bureaucratic Misuse, and a Quiet Constitutional Breach

A restrained constitutional counter-note

Purpose of This Document

- This document is not political.
- It is not religious.
- It is not confrontational.
- It is a constitutional examination of judicial method and enforcement that raises serious concerns regarding separation of powers, state autonomy, and institutional restraint.
- The concern here is not what was decided

but how the decision was reasoned and how it was enforced.

The Judgment in Brief (Neutral Statement)

In the present case, the Court:

- Relied extensively on ancient custom and historical continuity
- Treated historical disruption as a legally correctable wrong
- During contempt proceedings:
- Permitted private individuals to execute the act
- Directed deployment of CISE, a Central Armed Police Force
- Did so without executive requisition and outside court premises
- This combination demands constitutional scrutiny.

Issue One: History Is Not a Judicial Tool

Courts adjudicate law, not history.

History is:

- Interpretive
- Selective
- Disputed
- Narrative-driven

Law requires:

- Present applicability
- Objective standards
- Neutral reasoning
- Prospective operation

When history becomes determinative reasoning instead of contextual background, adjudication shifts from law to civilizational validation.

That is not judicial work.

Issue Two: Constitutional Adjudication Is Prospective

The Indian Constitution deliberately begins in 1950.

It does not exist to:

- Restore ancient practices
- Correct medieval interruptions
- Settle civilizational disputes

It exists to:

- Protect current rights
- Regulate present power
- Prevent future injustice
- If historical grievance becomes constitutional reasoning, every past wrong becomes a legal claim.
- That is neither workable nor constitutional.

Issue Three: Judicial Neutrality Collapses with Historical Preference

- Once a court:
- Selects which history is legitimate
- Declares which interruption was unjust
- Restores continuity through enforcement
- Judicial neutrality gives way to historical preference.

Courts have no constitutional mandate to arbitrate civilization.

Issue Four: Enforcement Is Not a Judicial Function

Judicial review is not judicial execution.

A court may:

- Interpret rights
- Declare illegality
- Issue directions
- Review executive action

A court may not:

- Choose armed forces
- Command operational deployment
- Replace executive discretion
- Execute its own orders on the ground
- The moment enforcement begins, the executive domain begins.

Issue Five: CISF Cannot Be Judicially Operationalized

CISF is:

- A Central Armed Police Force
- Controlled by the Union Executive
- Deployed through executive decision
- Mandated for critical infrastructure and national assets
- Its presence in court campuses is protective, not operational.

Using CISF for judicial enforcement:

- Bypasses executive authority
- Undermines state police autonomy
- Distorts federal balance
- This is not efficiency.
- This is constitutional role confusion.

Issue Six: Judicial Substitution of Executive Machinery

- Bureaucratic machinery operates within a constitutional chain of command.
- Central Armed Police Forces function under executive control, deployed through:
- Administrative assessment
- Security evaluation
- Federal coordination

When a court directly operationalizes such machinery to execute its own order, the issue is not enforcement it is substitution.

This substitutes:

- Judicial direction for executive discretion
- Court urgency for administrative assessment
- Institutional authority for constitutional process
- Such substitution is not contemplated by the Constitution.

It converts bureaucratic machinery into a judicial instrument, undermining both executive accountability and judicial neutrality.

Issue Seven: State Autonomy and Federal Balance

Law and order is a State subject.

When a court:

- Declares state machinery as failed
- Bypasses state police
- Deploys a central force without requisition
- It weakens federal structure, not constitutionalism.
- Good intention does not cure institutional overreach.
- Issue Eight: Limits of Contempt Jurisdiction

Contempt powers exist to:

- Preserve dignity of courts
- Address wilful disobedience
- They do not exist to:
- Redesign enforcement mechanisms
- Create substitute executors
- Operationalize judicial orders
- Using contempt to execute rather than examine compliance converts a court into an executing authority which contempt law does not permit.

Appendix: Constitutional Articles Implicated / Violated

(Based on method and enforcement adopted in the judgment)

Article 50 – Separation of Judiciary from Executive

Judiciary crossed from interpretation into execution

Direct operational control exercised

Violation: Judicial overreach into executive domain.

Articles 154 & 162 – Executive Power of the State

Executive authority bypassed

No requisition or administrative process followed

Violation: Judicial substitution of executive discretion.

Articles 245 & 246 – Federal Distribution of Powers

Law and order is a State subject

Central force deployed judicially

Violation: Federal balance undermined.

Article 256 – Compliance Does Not Mean Judicial Enforcement

Courts cannot enforce compliance by commanding armed forces

Violation: Court assumed command-and-control role.

Article 215 – Limits of Contempt Jurisdiction

Contempt used to execute orders

Substitute enforcement created

Violation: Contempt powers exceeded.

Article 226 – Limits of Writ Jurisdiction

Writ jurisdiction turned into operational command

Violation: Jurisdiction expanded beyond constitutional limits.

Article 14 – Institutional Equality and Neutrality

Historical preference introduced

Process equality between institutions disturbed

Violation: Neutral adjudication compromised.

Articles 25 & 26 – Why They Do NOT Justify the Breach

Subject to public order, law, and constitutional structure

Cannot override separation of powers or federalism

Clarification: Rights enforcement cannot be unconstitutional.

Structural Constitutional Principle Violated (Summary)

Rights cannot be enforced by dismantling institutional boundaries.

Final Constitutional Position

This document:

- Does not deny religious rights
- Does not justify executive defiance
- Does not attack the judiciary
- It defends constitutional discipline.

Power must remain within its constitutional lane especially when exercised by institutions meant to protect the Constitution.

Judicial authority is strongest when it is restrained, not operational.

Written in defence of:

Judicial neutrality

Executive accountability

State autonomy

Federal balance

Constitutional restraint

Not against any institution.

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